

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

POLICY COMMITTEE
RECOMMENDATION

FOR ENGROSSED

SENATE BILL NO. 640

By: Paxton and Bullard of the
Senate

and

Roe of the House

POLICY COMMITTEE RECOMMENDATION

An Act relating to medical marijuana; directing licensed medical marijuana businesses to remove or lawfully dispose of surface trash, debris, waste, and substances; defining term; providing for the assessment of fines for violations; authorizing the Oklahoma Medical Marijuana Authority to promulgate certain rules; directing licensed medical marijuana commercial growers to clean up commercial grow operation within certain number of days after license revocation, expiration, or inactivity; declaring commercial grow operations as public nuisances under certain circumstances; authorizing abatement; defining terms; authorizing the Oklahoma Medical Marijuana Authority to promulgate certain rules; declaring abandoned marijuana grows as public nuisances; defining term; repealing Section 2, Chapter 41, O.S.L. 2023 (63 O.S. Supp. 2025, Section 427.26), which relates to bond requirements for land use; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 420.1 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. All licensed medical marijuana businesses shall remove or
5 lawfully dispose of all surface trash, debris, waste, and substances
6 occasioned by the operations of the licensed medical marijuana
7 business from the vicinity of its operations and shall keep such
8 premises free and clear of such.

9 B. For purposes of this section, "surface trash, debris, waste,
10 and substances" means all discarded materials directly or indirectly
11 connected with the operations of the licensed medical marijuana
12 business, including any materials or substances designated as a
13 chemical.

14 C. Any violation of this section may result in the assessment
15 of a fine in the amount of Five Thousand Dollars (\$5,000.00). Any
16 subsequent violation of this section may result in the assessment of
17 a fine in the amount of Twenty-five Thousand Dollars (\$25,000.00).

18 D. The Oklahoma Medical Marijuana Authority may promulgate
19 rules to effectuate the provisions of this section and establish any
20 necessary enforcement measures.

21 SECTION 2. NEW LAW A new section of law to be codified

22 in the Oklahoma Statutes as Section 422.1 of Title 63, unless there
23 is created a duplication in numbering, reads as follows:

1 A. Within thirty (30) days after the medical marijuana
2 commercial grower license is revoked, expired, or otherwise ceases
3 to be active, the licensed medical marijuana commercial grower shall
4 clean up, or cause to be cleaned up, the site of the medical
5 marijuana commercial grow operation.

6 B. It is a public nuisance, which may be abated pursuant to the
7 provisions of Section 3 of this act, if the licensed medical
8 marijuana commercial grower fails to complete the provisions of
9 subsection A of this section.

10 C. As used in this section:

11 1. "Cleanup" means the removal or lawful disposal of waste
12 directly or indirectly connected with the licensed medical marijuana
13 grow operation; and

14 2. "Waste" means:

- 15 a. marijuana flowers, marijuana leaves, marijuana plants,
16 and any parts of the marijuana plant,
- 17 b. any items or material directly or indirectly used for
18 irrigation of the licensed medical marijuana
19 commercial grow operation, unless the items or
20 materials are the property of the landowner who elects
21 to properly store the items or materials,
- 22 c. greenhouses, hoop houses, or other movable structures
23 directly or indirectly connected with the operation of
24 the licensed medical marijuana commercial grow

1 operation, unless the greenhouses, hoop houses, or
2 other movable structures are the property of the
3 landowner who elects to properly maintain such
4 structures, and

- 5 d. any material or substance designated as a chemical
6 directly or indirectly used for the operation of the
7 licensed medical marijuana commercial grow operation,
8 unless the material or substance is the property of
9 the landowner who elects to store the items or
10 materials in compliance with applicable federal,
11 state, and local laws and regulations.

12 C. The Oklahoma Medical Marijuana Authority may promulgate
13 rules to effectuate the provisions of this section and establish any
14 necessary enforcement measures.

15 SECTION 3. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 22 of Title 50, unless there is
17 created a duplication in numbering, reads as follows:

18 A. An abandoned medical marijuana grow operation shall
19 constitute a public nuisance.

20 B. For the purposes of this section, "abandoned medical
21 marijuana grow operation" means a cultivation site that has been
22 deserted by its operators, leaving behind surface trash, debris,
23 waste, substances, and unusable structures.

1 SECTION 4. REPEALER Section 2, Chapter 41, O.S.L. 2023
2 (63 O.S. Supp. 2025, Section 427.26), is hereby repealed.

3 SECTION 5. This act shall become effective July 1, 2026.

4 SECTION 6. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

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9 60-2-17346 GRS 04/08/26